

26SMCV00778 26SMCV00778

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CP%2C08%2F27%2F2026

Source SHA-256: e7a837123e6963ceccb685f079a4ec1a7305dba8b3d41a2a1d3c6a9512dff389

Case Number: 26SMCV00778 Hearing Date: August 27, 2026 Dept: P

Tentative

Ruling

John

Young, et al. v. Shopify, Inc., et al.; Case No. 26SMCV00778

Motions:

(1)

Shopify's

Demurrer

(2)

Saunabox's

Demurrer with Motion to Strike

Hearing

Date: August 27, 2026

Background

Plaintiffs

John Young and Joious Young ("the Youngs") sue Defendants Shopify, Inc.; Shopify (USA), Inc.; Shopify Payments (USA), Inc. ("Shopify"); and Saunabox LLC ("Saunabox") for strict products liability and negligence based on design defects, manufacturing defects, or Defendants' failure to warn. The Youngs allege that on April 21, 2025, John Young was using a portable sauna designed and manufactured by Saunabox when it sprayed him with scalding water and steam,

burning him, and causing severe emotional distress to John Young's daughter, Joiuous Young, who was nearby. (First Amended Complaint ("FAC"), ¶¶ 1-2.) The Youngs allege that Shopify distributed and sold the portable sauna through its e-commerce platform, which hosts Saunabox's website. (Complaint, ¶ 25-28.)

On

February 11, 2026, The Youngs filed the initial complaint.

On March

6, 2026, the Youngs filed the FAC.

On March

27, 2026, the Youngs and Shopify filed a stipulation to extend Shopify's demurrer deadline to April 30, 2026.

On April

30, 2026, Shopify filed its demurrer.

On May 4,

2026, Saunabox filed its demurrer and motion to strike the Youngs' requests for attorneys' fees and punitive damages.

On August

7, 2026, the Youngs filed oppositions to both demurrers.

On August

20, 2026, Shopify and Saunabox filed replies.

Shopify's

Demurrer

Arguments

Shopify

demurs to the Youngs' five claims for strict and negligent products liability on the grounds that the FAC does not allege that Shopify designed, managed, manufactured, inspected, or delivered the Saunabox product and is therefore not subject to strict liability for the defective product. (Shopify Demurrer, p. 11.) Shopify argues that it only provided services to Saunabox and is not analogous to a manufacturer. (Id. at p. 12.) Shopify argues that the Youngs'

allegations that Shopify was integral to the business enterprise do not state a claim for strict liability because the underlying policies are still not satisfied. (Id. at p. 13.) Shopify argues that the Youngs' specific allegations of Shopify's role as an e-commerce platform control of their general allegations that Shopify was integral to the company. (Id. at p. 14.) Shopify argues that appellate cases finding Amazon strictly liable for products sold by third parties are distinguishable because the FAC does not allege that Shopify had a consumer-facing role in the marketplace, as Amazon did. (Id. at p. 15.) Shopify argues that the Youngs' negligence-based claims fail because Shopify did not owe the Youngs any duty to protect them from Saunabox's conduct. (Id. at p. 17.) Shopify then argues that the Rowland factors do not support finding a duty under these circumstances. (Id. at pp. 18-19.) Finally, Shopify argues that the Youngs' negligence-based claims fail to allege any negligent conduct and that the Youngs do not allege that Shopify's conduct proximately caused their harm. (Id. at p. 21.)

In opposition, the Youngs argue that Shopify's motion improperly relies on extrinsic evidence of the appearance of Saunabox's evidence and objects to Shopify's request for judicial notice of those screenshots. (Opposition, p. 6.) The Youngs argue that this case is like the two appellate cases against Amazon, *Bolger v. Amazon.com, LLC* (2016) 53 Cal.App.5th 431 and *Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466. (Ibid.) The Youngs argue that Shopify raises factual issues that should not be decided at the demurrer stage, and the Youngs point out that the cases on which Shopify relies were resolved at the summary judgment stage, not on demurrer. (Id. at p. 7.) The Youngs argue that the FAC alleges that Shopify distributed and sold the Saunabox product, and since these factual allegations must be taken as true at the demurrer stage, these allegations are sufficient to plead strict products liability. (Id. at p. 8.) Next, the Youngs argue that they have pleaded facts showing that Shopify is a direct link in the vertical chain of distribution showing that Shopify may be liable under *Canifax v. Hercules Powder Co.* (1965) 237 Cal.App.2d 44. (Id. at p. 12.) The Youngs argue that the FAC also pleads strict liability claims under the stream of commerce test in *Bay Summit*, and that policy considerations support a strict liability finding. (Id. at p. 15.) The Youngs argue that Shopify's service-provider argument does not immunize it from liability. (Id. at p. 16.) The Youngs argue that Shopify owed a duty of ordinary care in operating its business under the Rowland factors and Shopify's breach of that duty of care by selling the Saunabox product without a warning. (Id. at p. 18.) In the alternative, the Youngs

request leave to amend. (Id. at p. 20.)

In reply,

Shopify argues that the Youngs seek to stretch product liability too far.

Shopify argues that the Youngs' conclusory allegations that all the defendants sold and distributed the product through Shopify are inadequate and conclusory.

(Reply, p. 6.) Shopify argues that non-conclusory allegations control and the actual factual allegations demonstrate Shopify's limited role in the sale process. (Id. at p. 7.) Shopify argues that the FAC does not allege that Shopify is within the vertical chain of distribution or the stream of commerce.

(Id. at p. 8.) Shopify argues that the FAC alleges that it occupied a fundamentally different role than Amazon occupied in the products liability cases against it because it did not hold itself out as a vendor. (Id. at p. 9.)

Shopify argues that other policy considerations do not support finding it liable and that plaintiffs have not alleged any tort duty to support their negligence allegations, or properly alleged breach or proximate cause. (Id. at pp. 13-14.)

Request

for Judicial Notice

Shopify

requests judicial notice of screenshots of the Saunabox website and Shopify's terms of services. The Youngs oppose the request for judicial notice, arguing that the screenshots of the website are irrelevant because they do not show what the website looked like in July 2024, when John Young purchased the product and because the terms of service agreement is entirely irrelevant to this dispute. In reply, Shopify argues that their demurrer would succeed regardless of the request for judicial notice, and that the Saunabox website has not meaningfully changed in the past two years, referencing archived versions of the website.

Here, the

complaint references the Saunabox website and specifically alleges that John Young purchased the defective product through the Saunabox website. Judicial notice of the website is allowed for completeness. The archived version of the website referenced in Shopify's reply is almost identical to the current website. Judicial notice of the website is GRANTED.

On the

other hand, the terms of service that Shopify seeks notice are not the contract referenced in the complaint. The complaint references a contract between Shopify and Saunabox, not the consumer and Shopify, so the terms of service are irrelevant to the complaint as written. As such, judicial notice of the terms of service is DENIED.

Governing

Law- Demurrer

In a

demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a

demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

Before

filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Discussion

a.

Procedural

Issues

Shopify

met and conferred with the Youngs' counsel on April 23, 2026 by phone. (Blavin Decl., ¶ 2.) The meet and confer requirement is satisfied.

b.

Strict

Products Liability

A

complaint states a claim for strict products liability where it claims (1) a defect in the manufacture or design of a product or a failure to warn; (2) causation; and (3) injury. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318 [elements of strict liability]. See also Arriaga v. CitiCapital Commercial Corp. (2008) 167 Cal.App.4th 1527, 1534-1535 [potentially liable parties include manufacturers marketing products while knowing they are used without inspection for defects causing injuries, retailers, lessors, distributors, licensors, and anyone identifiable as “an integral part of the overall producing and marketing enterprise’....”].) The fact that an entity promotes, endorses, or advertises a product, however, does not automatically create strict liability. (Bay Summit Community Assn. v. Shell Oil Co. (1996) 51 Cal.App.4th 762, 776.) “[A] defendant involved in the marketing/distribution process has been held strictly liable if three factors are present: (1) the defendant received a financial benefit from its activities and from the sale of its product; (2) the defendant’s role was integral to the business enterprise such that the defendant’s conduct was a necessary factor in bringing the product to the initial consumer market; and (3) the defendant had control over, or a substantial ability to influence, the manufacturing or distribution process.” (ibid.)

The

Youngs first argue that the complaint alleges sufficient detail to state a claim at the demurrer stage, and that the extent of defendant’s participation in the enterprise is a factual determination not appropriately resolved at the demurrer stage. (Bay Summit Community Assn. v. Shell Oil Co., supra, 51 Cal.App.4th 778, fn. 10.) Whether or not a defendant falls within the scope of the strict liability doctrine, however, is generally a question of law. (Ibid., see Kasel v. Remington Arms Co. (1972) 24 Cal.App.3d 711, 723, fn. 13.)

The

Youngs allege that Shopify distributed the Saunabox product and sold it through its e-commerce platform. The Youngs allege that Shopify has the sole discretion to determine what products may be sold on its e-commerce platform, contracted with Saunabox to sell the product on its e-commerce platform, handled all the financial aspects of any sale on its e-commerce platform, billed John Young for the Saunabox product, collected John Young's payment, and collected information about customers on its e-commerce platform. The Youngs allege that Shopify markets the product, receives a direct financial benefit from the product, and had an integral role. (FAC, ¶¶ 26-50.)

In

Bolger v. Amazon.com, LLC (2020) 53 Cal.App.5th 431, Bolger purchased a replacement laptop battery from Amazon, which retrieved the battery from its warehouse and shipped the battery to Bolger. (*Bolger v. Amazon.com*, supra, 53 Cal.App.5th at 437.) In finding a triable issue of fact, the Court described Amazon's relationship with the product manufacturer, Lenoge, and with the consumer, Bolger, as "pivotal in bringing the product here to the customer," no matter "[what] term we use to describe Amazon's role, be it 'retailer,' 'distributor,' or merely 'facilitator,'" (Id. at 438.) According to the court, "Amazon functions in much the same manner as a conventional retailer." (Id. at p. 453.) "Amazon had control over both the product at issue and the transaction that resulted in its sale to Bolger. It constructed the Amazon website, accepted Lenoge as a third-party seller, marketed Lenoge's offer for sale, took possession of the replacement battery, accepted Bolger's order for the battery, billed her for the purchase price, and shipped her the battery in Amazon-branded packaging. But for Amazon's own acts, Bolger would not have been injured. Amazon's own acts, and its control over the product in question, form the basis for its liability." (Id. at p. 456.)

Loomis

v. Amazon.com, LLC

addressed a similar situation to *Bolger*, except the allegedly defective product was handled and shipped by the seller, not Amazon. The Court of Appeal affirmed Bolger's holding that Amazon was liable for the product defects under both the chain of distribution and stream of commerce tests. It identified five specific actions that characterized Amazon as a retailer or distributor of consumer goods rather than a facilitator: "(1) interacting with the customer, (2) taking the order, (3) processing the order to the third party seller, (4) collecting the money, and (5) being paid a percentage of the sale,"

(Loomis v. Amazon.com LLC (2021) 63 Cal.App.5th 466, 481.) The Court also addressed the stream of commerce doctrine, finding that Amazon would also be liable under the stream of commerce approach because it profited from the product sales at issue and had substantial influence over the manufacturing and distribution process. (Id. at 482.)

Here,

the Youngs allege that Shopify interacted with consumers via cookies, processed the order, collected the fee, and received a percentage of the sale. Though these allegations show some level of interaction with the customer, they do not allege the same level of interaction that the Bolger and Loomis courts found created strict liability. Nothing in the complaint suggests that Shopify “functions in much the same manner as a conventional retailer.” (Bolger, 53 Cal.App.5th at 453.) In both Bolger and Loomis, the plaintiff purchased the product from Amazon’s website, which was readily identifiable as Amazon, and likely did not know the true identity of the product’s manufacturer. Here, John Young bought the Saunabox product from Saunabox.com, a website that is not clearly identified as a Shopify e-commerce platform in any way until the customer is ready to pay for the purchase. In this case, Shopify is alleged to act more like a credit card processor than Amazon, which holds itself out as an online storefront.

Plaintiffs

also argue that they state a claim for strict products liability under *Canifax v. Hercules Powder Co.* (1965) 237 Cal.App.2d 44. In that case, workers and their relatives sought damages for injuries caused by an explosion, alleging that the wholesaler was negligent for selling or supplying the blasting equipment without adequately warning the Plaintiffs of the danger. (*Canifax v. Hercules Powder Co.* (1965) 237 Cal.App.2d 44 at 47-48.) Defendant Hercules was a dynamite wholesaler who, neither manufactured nor transported the fuse. (Id. at 48.) Instead, the defendant placed the order, billed the customer, and paid the manufacturer’s invoices. (Ibid.)

There

are important differences between *Canifax* and this case. First, Hercules Powder Co. was a wholesaler in the business of selling dynamite and explosive equipment such as the allegedly defective product. (Id. at 52.) Second, the product at issue was an abnormally dangerous product, which leads to a different analysis. (Id. at 53.) Here, the Youngs do not allege that Shopify sold portable saunas itself or held itself out as a seller of portable saunas

in any way, nor do they allege that the Saunabox product was an abnormally dangerous product.

Shopify's
demurrer to the Youngs strict products liability claims is SUSTAINED.

c.
Negligent
Products Liability

To
state a claim for negligent products liability, a complaint must allege the elements of products liability and the elements of negligence: that the defendant owed the plaintiff a legal duty, breached that duty, that the breach was a proximate cause of the plaintiff's injury, and that the defect in the product was due to the defendant's negligence. (*Gonzalez v. Autoliv ASP, Inc.* (2007), 154 Cal. App. 4th 780, 793.)

Shopify
contends that the Youngs allege no facts showing that Shopify owed the Youngs a duty of care. (Demurrer, p. 17.) The Youngs argue that Shopify owes it a general duty of ordinary care under Civ. Code § 1714 because the Rowland factors do not support a categorical exemption for e-commerce platforms. (Opposition, pp. 17-18.) In reply, Shopify argues that imposition of such a duty requires that a defendant has affirmatively created a peril that foreseeably leads to the plaintiffs' harm. (Reply, p. 13.)

As
a general matter, there is no duty to protect others from injuries caused by a third party's conduct. (*Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224, 235.) A duty may nonetheless exist if there is a special relationship between the parties or if other circumstances give rise to a duty to protect. (*Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 216.) If either exists, the Court considers "whether relevant policy considerations counsel limiting that duty," looking to policy factors identified in *Rowland v. Christian* (1968) 69 Cal.2d 108, 112-113.

The
Youngs argue that Shopify's contractual relationship with Saunabox gave rise to a duty because they allege that Shopify profits from Saunabox's sale and that

the foreseeability of the injury should be a question for the jury.
(Opposition, p. 18.)

In

Jane Doe 1 v. Uber Technologies (2022) 79 Cal.App.5th 410, the Court of Appeal rejected the plaintiffs argument that Uber owed them a duty arising out of an implied contractual obligation to protect the Jane Does arising from statement on the Uber website that the app offers safe pickups. (Jane Doe 1 v. Uber Technologies, supra, 79 Cal.App.5th at 423.) Here, The Youngs do not allege any contractual or quasi-contractual promise with Shopify in the FAC. Since there are no allegations of any contractual terms or privity that could give rise to a duty of care, the FAC does not state a claim for negligence.

Shopify's

demurrer to the Youngs' negligent products liability claims is SUSTAINED.

d.

Leave

to Amend

The

Youngs' allegations of Shopify's role as an e-commerce platform supporting Saunabox's online business are extensive. It is unlikely that the Youngs will be able to amend the FAC to state a claim for strict products liability for the reasons set forth above. However, the Youngs allege almost no facts articulating what kind of duty Shopify would owe them. Since that claim fails for insufficient detail, and the Youngs have indicated that they would be able to amend any deficiencies, the Court is not prepared to find that there is no any reasonable possibility that the plaintiff can state a good cause of action and leave to amend is therefore appropriate.

Saunabox's

Demurrer

Saunabox

argues that Joious Young fails to state a claim for emotional distress because she does not allege that she was contemporaneously aware of the event that caused her father's injury. (Demurrer, p. 3-5.) Saunabox argues the Joious Young's claims for strict and negligence-based products liability because she

does not allege that she was a direct victim of any tortious conduct. (Id. at p. 7.) Saunabox also argues that John Young does not state a claim against it because he does not allege what the manufacturing or design defect was. (Id. at p. 8.)

In opposition, the Youngs argue that the FAC does allege that Joious Young was contemporaneously aware of her father's injury and that she may recover damages for negligence as a close-relative of John Young under *Kately v. Wilkinson* (1983) 148 Cal.App.3d 576 and *Shepard v. Superior Court* (1977) 76 Cal.App.3d 16. (Id. at p. 6.) The Youngs argue that the complaint alleges sufficient ultimate facts that the product was defective because of manufacturing and or design defects that caused it to release hot steam and water and burn John Young. (Opposition, p. 14.)

In reply, Saunabox argues that the complaint is efficient because it does not allege that the product was still discharging water when Joious Young arrived at the scene. (Reply, p. 2-3.) Saunabox argues that the complaint does not allege facts showing that Joious Young could recover as a bystander on her strict and negligent products liability claims either. (Reply, p. 6.) Saunabox argues that the FAC does not allege a unit-specific flaw in the product at issue, and that the facts alleged are legal conclusions, not ultimate factual allegations, that repackage a design defect claim as a manufacturing defect. (Reply, p. 8.)

Governing
Law- Demurrer

In a demurrer proceeding, the defects in the complaint must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18

Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Before

filing a demurrer, parties must meet and confer in person or by phone. (Code Civ. Proc. § 430.41.)

Discussion

a.

Meet

and Confer

Saunabox

does not submit a meet and confer declaration showing that it met and conferred with the Youngs before bringing this demurrer. However, failure to meet and confer is not grounds for overruling a demurrer.

b.

Bystander

Liability and Emotional Distress Damages

There are

two separate types of bystander liability: bystander liability, and bystander liability where the bystander is related to the victim. The contemporaneous observation requirements are more strict in cases where the bystander is not related to the victim. Here, however, the bystander is related to the victim.

The FAC alleges that Joious Young observed her father’s injury, though it does not allege that she was there when the injury began. Saunabox’s demurrer boils down to an argument that the FAC must allege specifically that the defective product was still emitting steam or water after Joious Young arrived.

Saunabox’s caselaw does not support such a stringent pleading requirement.

Saunabox’s

Demurrer is OVERRULED.

c.

Bystander

Liability and Products Liability

The Court

agrees with the Youngs' interpretation of *Shepard*, *Kately*, and *Thing*.

Though *Thing* post-dates the other two cases, it does not disturb their holdings on family-based bystander liability.

In *Shepard*,

the Court of Appeal rejected a very similar argument to the one that *Saunabox* makes here. It held that the family members could proceed on a strict liability theory because they alleged the close relationship, proximity, and contemporaneous sensory perception required for bystander recovery. *Id.* at 20–21. The Court also acknowledged that a plaintiff in a products liability case may bring both negligence and strict liability causes of action, and recognized there was “no logical reason why the same rule of multiple theories of recovery should not be extended” to those with viable bystander claims. (*Ibid.*) The Court further explained that to “permit recovery against the negligent driver and except the manufacturer responsible for the defective condition contributing to the injuries would defy common sense and be inconsistent with the realities of modern society.” The same is true here.

Saunabox's

Demurrer is **OVERRULED**.

d.

John

Young's Strict and Negligent Products Liability Claims

A

complaint states a claim for strict products liability where it claims (1) a defect in the manufacture or design of a product or a failure to warn; (2) causation; and (3) injury. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318 [elements of strict liability]). See also *Arriaga*

v. CitiCapital Commercial Corp. (2008) 167 Cal.App.4th 1527, 1534-1535 [potentially liable parties include manufacturers marketing products while knowing they are used without inspection for defects causing injuries, retailers, lessors, distributors, licensors, and anyone identifiable

as “an integral part of the overall producing and marketing enterprise’....”].)

To

state a claim for negligent products liability, a complaint must allege the elements of products liability and the elements of negligence: that the defendant owed the plaintiff a legal duty, breached that duty, that the breach was a proximate cause of the plaintiff's injury, and that the defect in the product was due to the defendant's negligence. (Gonzalez v. Autoliv ASP, Inc. (2007), 154 Cal. App. 4th 780, 793.)

John Young

states claims for strict and negligent products liability. Saunabox primarily contends that the FAC does not allege specific facts describing the alleged manufacturing defect. The FAC alleges that “Defendant SAUNABOX LLC and DOES 16 through 30 knew, or with the exercise of reasonable diligence, should have known, that the SUBJECT PRODUCT model had a manufacturing and/or design defect, such that the water heater on the SUBJECT PRODUCT model was prone to failure, explosion, and/or inadvertent release of pressurized, heated water and steam. . .” (FAC, ¶ 6.) The FAC also alleges that the defect was a substantial cause of John Young's injury, and that John Young was harmed as a result of the defect. (FAC, ¶¶ 57,58.)

John Young

also alleges that the Saunabox product did not perform as an ordinary consumer would have expected it to perform because an ordinary consumer would not expect the product to spray hot water and/or pressurized hot steam onto a user, and that the design needlessly increased the likelihood of harm to ordinary consumers and was a substantial factor in John Young's harm. (FAC, ¶¶ 66-71.)

As to

negligence, the Youngs allege that Saunabox owed a duty to sell a product that was not defective and safe for ordinary and expected use, that they breached the duty by selling a defective product whose defects caused Joun Young's harm. (FAC, ¶¶ 90-92.)

The FAC

states a claim for strict and negligent products liability. Saunabox's Demurrer is OVERRULED.

Saunabox's

Motion to Strike

Saunabox

moves to strike portions of the first amended complaint, including the Youngs' prayer for punitive damages and attorneys' fees. (See Notice of Motion.)

Saunabox argues that the FAC does not allege claims with sufficient specificity to support the Youngs' demands for punitive damages. (Motion to Strike, p. 3.)

Saunabox argues that the Youngs' claim for attorneys' fees is not authorized by statute and likewise unsupported. (Id. at p. 4.)

In

opposition, the Youngs argue that their complaint is sufficiently detailed and that their prayer for fees and costs seeks costs under Code Civ. Proc. § 1032(b) and preserves their ability to seek attorneys' fees under Code Civ. Proc. § 1021.5. (Opposition, pp. 7-8.)

In reply,

Saunabox argues that the FAC's allegations are conclusory and insufficiently specific and that there is nothing about this case indicating that it will be of any benefit to the public and therefore justify a fee award under code Civ. Proc. § 1021.5. (Reply, p. 7.)

"Any

party, within the time allowed to response to a pleading, may serve and file a notice of motion to strike the whole or any part" of that pleading. (CCP 435(b).) "The Court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false or improper matter asserted in any pleading; (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court." (CCP 436.)

As the

Court reasoned on the demurrer, the Youngs' allegations are sufficiently detailed to state claims for strict and negligent products liability. The Youngs allege that Saunabox knew about prior injuries from its products, including burns, and knowingly and recklessly marketed their products and failed to act to prevent harm. (FAC, ¶ 76.) Together with the specific allegations discussed in the Court's demurrer ruling, these allegations are sufficient to state a claim for punitive damages.

As to the

Youngs' request for fees, the Court agrees with the Youngs that a fee determination at this junction would be premature. The Youngs are entitled to preserve a claim in the FAC even if they do not ultimately recover fees or even attempt to recover fees.

Saunabox's

Motion to Strike is DENIED.

Conclusion

Shopify's

demurrer to the Youngs' strict products liability claims are SUSTAINED without leave to amend.

Shopify's

demurrer to the Youngs' negligent products liability claims are SUSTAINED with leave to amend.

Saunabox's

Demurrer is OVERRULED.

Saunabox's

Motion to Strike is DENIED.